

3. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING ON DEMURRER TO: TO 3RD AMENDED PETITION
FILED BY: STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
TENTATIVE RULING:

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by Michelle Baass, in her official capacity as Director of the California Department of Health Care Services, and the California Health and Human Services Agency.

This hearing is CONTINUED to October 12, 2026 at 9:00 a.m. in this Department. Code of Civil Procedure section 430.41, subdivision (a) states:

Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. *If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.*

(Code Civ. Proc., § 430.41 (a), emphasis added.)

Moving defendants have failed to show they complied with the above with respect to the Third Amended Complaint, the subject of the present demurrer. It appears such efforts were made in the past, resulting in a stipulation filed on November 19, 2025 to allow the filing of the present complaint, but the effort was not repeated following the amended pleading. This does not meet the statutory requirements.

This matter is continued so that the parties can engage in a good faith meet and confer process that complies with the above-mentioned statutory requirement. Defendants shall meet and confer with petitioner, as required, and file a declaration regarding compliance by October 5th. If the parties reach an agreement about any of the matters raised in the motion, or agree to stipulate to an amended petition, the declaration shall include a description of these matters.

4. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING ON DEMURRER TO: 3RD AMENDED PETITION
FILED BY: MAXIMUS, INC.
TENTATIVE RULING:

Before the Court is a demurrer to Tania Marker's Third Amended Complaint, filed by the "real party in interest," Maximus, Inc. (erroneously sued as Maximus Federal Services). Maximus cites Code of Civil Procedure, § 430.10, subdivisions (a) and (d)-(f). The demurrer is **SUSTAINED without leave to amend** because while petitioner is not necessarily precluded from seeking another form of relief, she cannot state facts constituting a cause of action for administrative mandate against Maximus, as discussed below.

Maximus's demurrer points out that the only cause of action petitioner is seeking is a writ of